

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH
MULTAN
JUDICIAL DEPARTMENT

ICA No. 170 of 2017

Nuzhat Shahbana
versus

Govt. of Punjab etc

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
--------------------------------	------------------------------	--

07.06.2017	Raja Naveed Azam, Advocate for appellant. Mr. Mubasshar Latif Gill, AAG with Zahra Batool, Deputy DEO(W), Lodhran and Ghulam Hussain J.C. on behalf of DEO (EE-W), Lodhran.
------------	--

Through this appeal under Section 3 of the Law Reforms Ordinance, 1972, the appellant has called in question order dated 08.03.2017 passed by learned Single Judge in Chamber whereby the constitutional petition filed by the appellant was dismissed.

2. The claim of the appellant is that the respondent advertised for the post of SESE (Arabic) Teacher for which required academic qualification was BA with Shahadat-ul-Almiya or MA (Arabic) at least second division. The appellant claims that she was shortlisted for such appointment but later on her name was dropped from the said list. The appellant filed a constitutional petition before this

Court seeking a direction against the respondents for considering the appellant for the afore referred post and challenged dropping the name of the appellant from the recruitment process and prayed that the same be declared as null and void. The learned Single Judge dismissed the constitutional petition filed by the appellant on 08.03.2017. The said order is under challenge in this appeal.

3. The learned counsel for the appellant has argued that the appellant had the degree of Shahadat-ul-Almiya which has been declared equal to MA (Arabic) by Higher Education Commission (“HEC”), therefore, appellant possessed the requisite qualification, hence, the case of the appellant should have been considered.

4. On the contrary, the learned AAG has argued that the appellant was required to have BA degree with Shahadat-ul-Almiya to be qualified for appointment but she did not possess the same, therefore, she was not entitled to be considered and hence, has been left out from the remaining recruitment process.

5. In response to the advertisement, the appellant applied and appeared in NTS examination held under the supervision of the respondents and thereafter a

list was prepared for conducting interview for the recruitment of educators for the year 2015 wherein the name of the appellant appeared at Serial No. 3 and she was considered as graduate and in BA her marks were considered as 420 out of 600 under application No.5428 on the basis of Shahadatul Aalia degree obtained by her. Subsequently, a tentative merit list of educators was prepared wherein the name of the appellant was not included and we have been informed that five persons have been appointed on the available seats.

6. The degree of Shahadatul Almiya has been declared by HEC equivalent to MA (Arabic) for purpose of teaching Arabic and Islamic Studies for which equivalence certificate dated 12.12.2014 issued by the HEC has also been placed on record, the operative part of which is re-produced below:

“With reference to your application dated December 02, 2014 on the subject, it is informed that as per decision of the Equivalence Committee of erstwhile UGC, the Higher Education Commission considers the Sanad “Shahadatul Almiya Fil Uloomal Arabia wal Islamia” held by you from Tanzeem ul Madaris, Ahle Sunnat, Lahore as equivalent to M.A Arabic/Islamic Studies for the purpose of teaching Arabic and Islamic Studies in Colleges and Universities and for pursuing higher studies.”

7. In equivalence certificate, it has clearly been mentioned that for the purpose of teaching Arabic and Islamic Studies in Colleges and Universities, the degree possessed by the appellant was treated equal to MA (Arabic) degree. Through a notification No.SO(S-IV)2-34/2008 dated 14th April, 2009 issued by Government of Punjab, School Education Department, it has been observed as follows:

“that the Higher Education Commission considers the Sanad “Shahdat-ul-Almiya Fil Uloomal Arabia wal Islamia” awarded by Tanzeem ul Madaris, Lahore as equivalent to M.A Arabic/Islamic Studies or the purpose of teaching Arabic and Islamic Studies in Colleges and Universities for pursuing higher studies.

It has been decided by the competent authority that candidates having the above said Sanad may be allowed to apply of the post of SESE (Arabic) in the light of Notification mentioned in the subject cited above.”

Vide clarification issued with regard to the aforementioned letter, the Government of Punjab, School Education Department issued another notification dated 04.05.2009 to the following effect:

“This department vide letter of even No. dated 31.10.2008 has already allowed the

candidates to apply for the post of SESE (Arabic) whose equivalence has been declared by the University Grants Commissioner, Islamabad vide Notification No.8-418/Aca/82/128 dated Nov. 17, 1982 in which the Asnad issued by different schools of thought have been recognized as equivalent to M.A in Arabic.

It is clarified that this department's letter of even No. dated 14.4.2009 may be read with above mentioned letter dated 31.10.2008 in which different schools of thought have been facilitated."

8. It is also important to note that on 03.07.2009, the Government of Punjab, School Education Department issued a notification for re-advertisement for recruitment against unfilled posts of SESE (Arabic) due to non-availability of candidates during current recruitment on the basis of Sanads from deeni Madaris and recognized by the University Grants Commission, as equivalent to Bachelor/Masters degree as a valid qualification for the posts of SESE (Arabic).

9. The afore referred aspect of the matter has not been properly considered by the respondents. Besides the appellant has qualified from Tanzeemul Madaris (Ahle Sunnat), Pakistan which, according to notification of HEC No.8-16/HEC/A&A 2004 dated

May, 12 of 2004, is one of the recognized institution from where degree of Shahadatul Almiya and Shahadatul Aliya may be obtained.

10. From the perusal of all the aforesaid notifications/letters and equivalence certificate, it is held that the educational qualification of the appellant is to be treated equal to MA (Arabic) and she is entitled to be considered as eligible for appointment.

11. For the aforesaid reason, we **allow** this appeal and **set-aside** the order dated 08.03.2017 passed by learned Single Judge and direct the respondents to consider the case of the appellant for appointment to the post of SESE (Arabic) while treating her qualification as equal to MA (Arabic).

(Amin-Ud-Din Khan)
Judge

(Muzamil Akhtar Shabir)
Judge

Naveed*